

- (b) a notice of the opening of the lines of rails and works or the diversion shall be sent immediately to the Commissioner.

Comment

Section 24 provides that where an accident has occurred on a railway resulting in a temporary suspension of traffic may be opened for the public carriage of passengers without prior inspection by the Commissioner if the railway servant in charge of the works undertaken by reason of the accident certifies that opening of the lines or rails, works and temporary diversion will not be attended with danger to the public and notice of the opening of such lines of rails, works or other diversion is sent by telegraph to the Commissioner.

25. Power to close railway opened for the public carriage of passengers

:- Where after the inspection of any railway opened and used for the public carriage of passengers or any rolling stock used thereon, the Commissioner is of the opinion that the use of the railway or of any rolling stock will be attended with danger to the public using it, the Commissioner shall send a report to the Central Government who may thereupon direct that –

- i) the railway be closed for the public carriage of passengers; or
- ii) the use of the rolling stock be discontinued or
- ii) the railway or the rolling stock may be used for the public carriage of passengers subjects to such conditions as it may consider necessary for the safety of public.

Comment

Section 25 empowers the Central Government to close railway opened for the public carriage of passengers on receipt of the opinion of the Commissioner.

26. Re-opening of closed railway. :- When the Central Government has, under sec. 25 directed the closure of a railway or the discontinuance of the use of any rolling stock-

- (a) the railway shall not be re-opened for the public carriage of passengers until it has been inspected by the Commissioner and its re-opening is sanctioned in accordance with the provisions of this Chapter ; and

- (b) the rolling stock shall not be used until it has been inspected by the Commissioner and its re-use is sanctioned in accordance with the provisions of this chapter.

Comment

Section 26 lays down the conditions for re-opening of closed railway.

27. Use of rolling stock :- A railway administration may use rolling stock as it may consider necessary for the construction, operation and working of a railway:

Provided that before using rolling stock of a design or type different from that already running on any section of the railway, the previous sanction of the Central Government shall be obtained for such use :

Provided further that before giving any such sanction, the Central Government shall obtain a report from the Commissioner that he has a careful inspection of the rolling stock and , in his opinion, such rolling stock can be used.

Comment

Section 27 enjoins on a railway administration a duty to obtain the previous sanction of the Central Government before using any rolling stock of a design or type different from that already running on any section of the railway.

28. Delegation of powers :- The Central Government, by notification, direct that any of its powers or functions under this Chapter, except Sec. 29 or the rules made there under shall, in relation to such matters and subject to such conditions. If any, as may be specified in the notification be exercised or discharged also by a Commissioner.

Comment

Section 28 provides that the powers of the Central Government relating to opening of railways may be delegated to the Commissioner subject to such conditioned as may be specified.

29 Power to make rules in respect of matters in this Chapter :-

- (1) The Central Government may, by notification, make rules to carry out the purposes of this Chapter.
- (2) In particular, and without prejudice to the generality of the force going power. Such rules may provide for all or any of the following matters . namely: